REALTORS® Association of Edmonton

RESIDENTIAL LEASE TRANSACTION BROKERAGE AGREEMENT

FOR USE IN COMMON LAW BROKERAGES

THIS RESIDENTIAL LEASE TRANSACTION BROKERAGE AGREEMENT (THE "AGREEMENT") IS AMONG THE TENANT, LANDLORD AND THE BROKERAGE (THE "BROKERAGE")

AGREEMENT #:

THE TENANT:

NAME:

NAME:

ADDRESS:

Street address, city, province, postal code

PHONE:

EMAIL:

THE LANDLORD:

NAME:

NAME:

ADDRESS:

Street address, city, province, postal code

PHONE:

EMAIL:

THE BROKERAGE:

BROKERAGE NAME:

ADDRESS:

Street address, city, province, postal code

PHONE:

EMAIL:

BROKER, ASSOCIATE BROKER, OR ASSOCIATE AUTHORIZED TO REPRESENT THE BROKERAGE:

This Agreement is entered into by the Landlord and the Brokerage on the basis of the following facts:

(a) the Landlord owns the Property;
(b) the Tenant and Landlord are interested in entering into an agreement to lease;
(c) the Brokerage concurrently represents both the Tenant and the Landlord;
(d) such concurrent representation of both the Tenant and the Landlord by the Brokerage prevents it from:
  (i) being loyal both to the Tenant and the Landlord, and to act solely in both of their best interests;
  (ii) avoiding all conflicts of interest including conflicts that may arise among the interests of the Tenant, of the Landlord and of the Brokerage;
  (iii) making full disclosure of all facts that may influence the decisions of the Tenant or of the Landlord; and
  (iv) maintaining the confidentiality of information obtained from the Tenant or from the Landlord;
(e) such concurrent representation by the Brokerage is only permitted by law with the fully informed and voluntary consent of both the Tenant and the Landlord;
(f) the Tenant and the Landlord have read the Consumer Relationships Guide ("CRG") published by the REALTORS® Association of Edmonton ("RAE") and this Agreement, and have been given the opportunity to seek further information and independent advice concerning transaction brokerage representation and other relationships discussed therein; and
(g) the Brokerage is a member of RAE (the "Association").

In consideration of the Brokerage concurrently representing the Landlord and the Tenant in the capacity of transaction facilitator (the "Transaction Facilitator"), the Landlord and the Tenant consent and agree to their continued representation by the Brokerage on the following terms:

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1. THE PROPERTY

The Property is located at (municipal street address) _____

_____

having the legal description of Plan _____ Block _____ Lot/ Unit _____ Other:

_____ (the "Property").

2. IMPARTIALITY

The Transaction Facilitator will treat the interests of both the Tenant and the Landlord in an even-handed, objective, and impartial manner, including but not limited to, any advice or information given to one party will be disclosed to the other.

3. REASONABLE CARE AND SKILL

The Transaction Facilitator will exercise reasonable care and skill in the performance of its mandate under this Agreement.

4. ACCURACY OF INFORMATION

The Transaction Facilitator will not negligently or knowingly give false or misleading information to the Tenant or the Landlord.

5. INSTRUCTIONS

The Transaction Facilitator will obey the lawful instructions of the Tenant or the Landlord to the extent that they are consistent with the other terms of this Agreement.

6. BROKERAGE'S OBLIGATIONS

6.1 The Brokerage will ensure that the Transaction Facilitator:

(a) complies with the Brokerage's policies and procedures governing transaction brokerage; and

(b) treats the interests of both the Tenant and the Landlord in an even-handed, objective, and impartial manner.

6.2 The Brokerage will supervise the Transaction Facilitator and support staff providing facilitation services to the Tenant and the Landlord to ensure that they properly fulfill this Agreement.

6.3 The Brokerage will hold all monies received in respect of the transaction in trust in accordance with the provisions of the Real Estate Act.

7. DISCLOSURE OF INFORMATION

Other than the information described in Section 8, the Transaction Facilitator will disclose all information it provides or receives during the course of this Agreement and, in particular, will disclose:

(a) to the Tenant, all material latent defects affecting the Property known to the Transaction Facilitator; and

(b) to the Landlord, all material facts relevant to the Tenant's ability to lease the Property known to the Transaction Facilitator.

8. NON-DISCLOSURE OF CERTAIN INFORMATION

The Transaction Facilitator will not disclose without the informed written consent of the Tenant or the Landlord as the case may be:

(a) that the Tenant may be prepared to offer a higher price or terms other than those contained in the offer to lease;

(b) that the Landlord may be prepared to accept a lower price or terms other than those contained in the Landlord's brokerage agreement;

(c) the motivation of the Tenant or the Landlord for wishing to respectively lease the property; and

(d) subject to Section 7, personal information relating to the Tenant or the Landlord and other information disclosed at any time in confidence by either party to the Transaction Facilitator.

9. INSPECTIONS AND INQUIRIES

9.1 The Transaction Facilitator will not, for the Tenant:

(a) conduct or influence an independent inspection of the Property;

(b) in the absence of instructions from the Tenant, arrange or decide on arrangements for an inspection of the Property by another; or

(c) verify the accuracy or completeness of any information supplied or statements made by the Landlord concerning the Property.

9.2 The Transaction Facilitator will not, for the Landlord:

(a) conduct or influence an independent inquiry into the financial status of the Tenant; or

(b) verify the accuracy or completeness of any financial information, and/or any application supplied by the Tenant.

10. NO ATTRIBUTION OF KNOWLEDGE

The Transaction Facilitator's knowledge concerning the Tenant or the Landlord will not be attributed to the other.

11. VICARIOUS LIABILITY

Neither the Tenant nor the Landlord will be vicariously liable to the other for any acts of the Transaction Facilitator.

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12. FACILITATION SERVICES

12.1 The Transaction Facilitator will:

(a) present to the Tenant and the Landlord, in a timely manner, all offers and counter-offers to and from either party regardless of whether the Property is already the subject of a contract;

(b) convey to the Tenant and the Landlord, in a timely manner, all information that either wishes to have communicated to the other;

(c) keep the Tenant and the Landlord informed regarding the progress of the transaction; and

(d) comply with the provisions of the Real Estate Act and its regulations, the rules and bylaws of the Real Estate Council of Alberta, and the rules and regulations of the Association and the Canadian Real Estate Association.

12.2 The Transaction Facilitator will also perform for the Tenant and the Landlord all necessary facilitation services, that is, services by which the interests of the Tenant and Landlord are met in an even handed, objective and impartial manner without providing confidential advice, advocating on behalf of either the Tenant or Landlord, or using discretion or judgment that benefits the Tenant or Landlord to the prejudice of the other, and as required, the Transaction Facilitator will:

(a) assist the Tenant and the Landlord in negotiating a mutually acceptable agreement;

(b) provide real estate statistics and information on property including comparable property information available through listing services or other local databases;

(c) provide standard form lease agreement and other relevant documents;

(d) prepare all necessary documents in accordance with the instructions of the Tenant and Landlord; and

(e) provide the names of service providers as requested by the Landlord or Tenant, but will not recommend any particular professional to the Tenant or Landlord.

13. BROKERAGE'S FEE

The Tenant and the Landlord will compensate the Brokerage in accordance with the terms of the Tenant's brokerage agreement and Landlord's brokerage agreement with the Brokerage respectively.

14. USE AND DISTRIBUTION OF LANDLORD AND TENANT INFORMATION

14.1 The Landlord and Tenant understand and consent to the collection, use and disclosure of personal information (as defined in the Personal Information Protection Act) by the Brokerage and the Association for the purpose of this Agreement and such other use as is consistent with leasing the Property including, but not limited to, retaining and disclosing any listing and lease information, including price, which may be used by the Brokerage for any purpose relating to their business including conducting comparative analysis and disclosing such information to other persons such as appraisers and other brokerages.

14.2 If the Landlord or the Tenant have any questions about the collection of personal information, the Landlord can contact the privacy officer for the Brokerage using the Brokerage's contact information on page 1.

14.3 The Landlord and Tenant further acknowledge that the Brokerage and the Association may:

(a) compile, retain and publish any statistics including historical listing service data which may be used by the Brokerage and Association members to conduct comparative market analyses; and

(b) make such other use of the information as the Brokerage and the Association deem appropriate in connection with the listing, marketing, and leasing of real estate.

15. PRIOR AGREEMENTS

With the exception of the sections specifying the Transaction Facilitator's mandate and services in the Tenant's brokerage agreement and in the Landlord's brokerage agreement respectively, the rights and obligations of the Tenant, the Landlord, and the Brokerage will be determined in accordance with those agreements.

16. ADDITIONAL TERMS

16.1 This Agreement:

(a) Subject to Sections 13 and 15, will constitute the entire agreement among the Landlord, Tenant, and Brokerage, and there are no representations, warranties, collateral agreements, or conditions which affect this Agreement other than as expressed herein;

(b) is for the benefit of and will be binding upon the heirs, administrators, executors, successors and assigns of the parties; and

(c) will be governed by the laws of the Province of Alberta and the parties will submit to the jurisdiction of the Courts of the Province of Alberta for the resolution of any disputes that may arise out of this Agreement.

16.2 If any provision of this Agreement is found to be invalid, void, illegal, or not enforceable, such provision shall be considered separate and severable from this Agreement and the remaining provisions shall remain in force and be binding upon the parties.

16.3 The headings in this Agreement are inserted for convenience of reference only and shall not affect the construction of this Agreement.

16.4 No amendment to the terms of this Agreement shall be effective unless it is in writing and signed by the Landlord, Tenant, and Brokerage.

16.5 If there is conflict or discrepancy between any provision added to this Agreement and any provision in the standard portion hereof, the added provision will supersede the standard provision to the extent of such conflict or discrepancy.

17. NOTICES

Notices shall be delivered upon the Landlord, Tenant or Brokerage, as the case may be, at the addresses listed on the first page of this Agreement, unless otherwise specified in writing. Any notice may be served personally, or by registered or certified mail postage prepaid, or by electronic means, including email. If mailed from a post office in Calgary, such notice shall be deemed to have been received by the addressee three (3) post office business days after the date of mailing.

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18. ACKNOWLEDGMENT

The Tenant and the Landlord, having both received and read this Agreement and the CRG, and having been given the opportunity to request further information concerning this Agreement and the representation relationships described and in the CRG, acknowledge this Agreement accurately sets out the terms agreed to by the Tenant, the Landlord and the Brokerage.

19. SIGNATURES

This Agreement may be signed by the parties in counterparts and delivered originally or electronically. The signed and delivered electronic copy is deemed to be an original. Signing may be done by wet ink, insertion by the signatory of an image of a wet ink signature, or by means of an electronic signature.

Dated at _____.m. on _____, 20 _____.

Landlord's Signature	Witness' Signature
Landlord's Printed Name	Witness' Printed Name
Landlord's Signature	Witness' Signature
Landlord's Printed Name	Witness' Printed Name
Tenant's Signature	Witness' Signature
Tenant's Printed Name	Witness' Printed Name
Tenant's Signature	Witness' Signature
Tenant's Printed Name	Witness' Printed Name
Signature of Broker, Associate Broker, or Associate authorized to sign on behalf of the Brokerage	Brokerage Representative's Printed Name

Landlord initial here to show you have received a copy of this Agreement: _____ Date: _____

Tenant initial here to show you have received a copy of this Agreement:_____ Date: _____

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